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Case Number: 23PSCV03192 Hearing Date: July 6, 2026 Dept: G

Proposed Defendant-in-Intervention United

Financial Casualty Co.'s Motion for Leave to Intervene on Behalf of Defendant

Growponic, Inc.

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Proposed

Defendant-in-Intervention United Financial Casualty Co.'s Motion for Leave to Intervene on Behalf of Defendant Growponic, Inc. is GRANTED.

BACKGROUND

This

is a personal injury action arising from a motor vehicle collision. On October 16, 2021, defendant Haiping Tan (Tan), an alleged agent of defendant Growponic, Inc. (Growponic), allegedly caused a motor vehicle collision with plaintiff Oscar Campos (Campos). Proposed defendant-in-intervention United Financial Casualty Co. (United Financial) is Growponic's insurer.

On October

16, 2023, Campos filed the Complaint, alleging causes of action for (1) motor vehicle and (2) general negligence.

On June

2, 2026, United Financial filed this motion for leave to intervene, which is

unopposed.

The

motion is set for hearing on July 6, 2026.

ANALYSIS

United

Financial moves to file an answer in intervention. For the following reasons, the court GRANTS the motion.

Legal

Standard

“An

intervention takes place when a nonparty, deemed an intervenor, becomes a party to an action [by] . . . [u]niting with a defendant in resisting the claims of a plaintiff.” (Code Civ. Proc., § 387,

subd. (b)(2).) “The

court may . . . permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of

either of the parties, or an interest against both.” (Code Civ. Proc., § 387, subd. (d)(2).) The court has discretion to permit a nonparty

to intervene in litigation pending between others, provided: (1) the nonparty

has a direct and immediate interest in the litigation; (2) the intervention

will not enlarge the issues in the case; and (3) the reasons for intervention

outweigh any opposition by the existing parties. (Truck Ins. Exchange v. Super. Ct.

(1997) 60 Cal.App.4th 342, 346.)

Discussion

United

Financial argues that the court should permit it to intervene on behalf of Growponic. The court agrees.

The

court may allow intervention in the liability insurance context where third party claimants are involved when the insurer is allowed to take over in litigation if its insured is not defending an action to avoid harm to the insurer. (Western Heritage Ins. Co.

v. Super. Ct. (2011) 199 Cal.App.4th 1196, 1205.)

Campos

filed this action against Growponic, United Financial's insured. (Compl., p. 1.) United Financial has the same interests as Growponic

because it is obligated to pay for Growponic's potential liability for the collision. (Mot., p. 5.) Intervention will not enlarge the issues in this case, and no party opposes intervention.

Thus, United Financial may intervene in this action on behalf of Growponic.

Accordingly,

the court GRANTS the motion for leave to intervene.

CONCLUSION

For

these reasons, the motion for leave to intervene on behalf of defendant Growponic, Inc. is GRANTED.

The

proposed defendant-in-intervention, United Financial Casualty Co., is ORDERED to FILE SEPARATELY the proposed ANSWER IN INTERVENTION.